

		Code of Civil Procedure sections 2025.480(j) and 1987.2(a) for failure to comply with the subpoena, constitutes a "claim for relief" within the meaning of the anti-SLAPP statute. In <i>Benner</i>, the petitioner sought to add the party bringing the motion to strike to a martial dissolution procedure so the court could order that party to return all fees he was paid as a court appointed expert in the case. Despite the moving party being joined so the court could order the party to repay the fees he received, the Benner court still found section 425.16 did not apply. The same analysis applies here regarding the sanctions request. (<i>Benner, supra</i>, 36 Cal.App.5th at pp. 181-182, 193-196.) Moreover, the sanction request arises out of Respondent's complete refusal to comply with the subpoena, not any alleged underlying protected activity. Respondent has failed to show section 425.16 applies to the instant proceeding. Based on the foregoing, the motion is DENIED. Petitioner's "Objection and Motion to Strike" Respondent's new evidence and argument submitted on July 21, 2026 (ROA 180), is OVERRULED and DENIED. It appears Petitioner was able to fully respond to the new evidence and argument as Petitioner referenced the supplemental filings several times in its opposition. The parties' requests for judicial notice of the petition and supporting declaration filed in this action are GRANTED as to the existence of and legal effects of the records, but not as to the truth of any disputed facts asserted therein. (Evid. Code § 452, subd. (d); <i>Fontenot v. Wells Fargo Bank, NA</i> (2011) 198 Cal.App.4th 256, 264; <i>Arce v. Kaiser Foundation Health Plan, Inc.</i> (2010) 181 Cal.App.4th 471, 482.) The court declines to rule on the parties' evidentiary objections as the cited evidence and objections are not material to the disposition of the motion. Counsel for Petitioner is ordered to give notice of this ruling.
14.	<i>People of the State of California vs. Benji</i> 2025-01482836	Before the court is the motion of plaintiffs People of the State of California ex rel. Farmers Insurance Exchange, Mid-Century Insurance Company, and Truck Insurance Exchange (collectively, Plaintiffs) to deem this case complex and transfer the matter to a judge assigned to the court's complex panel.

		The designation of a case as complex is governed by California Rules of Court, rule 3.400, et seq. Rule 3.400(a) provides, a “‘complex case’ is an action that requires exceptional judicial management to avoid placing unnecessary burdens on the court or the litigants and to expedite the case, keep costs reasonable, and promote effective decision making by the court, the parties, and counsel.” Rule 3.400(b) establishes a nonexclusive list of factors the court must consider in determining whether a case is complex. The factors include “whether the action is likely to involve: [¶] (1) Numerous pretrial motions raising difficult or novel legal issues that will be time-consuming to resolve; [¶] (2) Management of a large number of witnesses or a substantial amount of documentary evidence; [¶] (3) Management of a large number of separately represented parties; [¶] (4) Coordination with related actions pending in one or more courts in other counties, states, or countries, or in a federal court; or [¶] (5) Substantial postjudgment judicial supervision.” The factors stated in rule 3.400(b) are not an exhaustive list of the factors a court must consider, nor must all the identified factors be present to deem a case complex. Rather, the court must consider the totality of the circumstances presented in the particular case and what is needed to manage and potentially try the case. The factors identified in rule 3.400(b) are simply illustrations of the type of considerations the court must evaluate and perhaps even just one of those factors could justify a complex case designation in an appropriate case. (See <i>Ford Motor Warranty Cases</i> (2017) 11 Cal.App.5th 626, 641, <i>First State Ins. Co. v. Superior Court</i> (2000) 79 Cal.App.4th 324, 332.) Rule 3.400(c) identifies the following types of claims as provisionally complex: “(1) Antitrust or trade regulation claims; [¶] (2) Construction defect claims involving many parties or structures; [¶] (3) Securities claims or investment losses involving many parties; [¶] (4) Environmental or toxic tort claims involving many parties; [¶] (5) Claims involving mass torts; [¶] (6) Claims involving class actions; or [¶] (7) Insurance coverage claims arising out of any of the claims listed in (c)(1) through (c)(6).” “With or without a hearing, the court may decide on its own motion, or on a noticed motion by any party, that a civil action is a complex case or that an action previously
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	declared to be a complex case is not a complex case.” (Cal. Rules Ct., rule 3.403.) Here, none of the parties contend this case falls into any of the categories deemed as provisionally complex, and therefore this motion turns on whether the parties are able to make a sufficient showing regarding the factors identified in rule 3.400(b) to warrant designating this case as complex. The fact the parties may agree or stipulate a case is complex does not make it so. Much like on a motion to seal documents, the court must act as a gatekeeper and determine whether the relevant factors have been adequately shown. The parties’ agreement on those factors is not sufficient. The parties appear to agree the case is complex in their view, but have disagreements as to whether this case is related to similar cases pending in Los Angeles and whether this case should be coordinated with the cases pending in Los Angeles. The parties suggest many of the factors identified in rule 3.400(b) are present in this case, but present no evidence to support their existence and largely superficial or conclusory analysis in an effort to establish them. For example, the parties contend this case is likely to involve numerous pretrial motions raising difficult or novel legal issues that will be time-consuming to resolve. The court ordered this case unsealed and Plaintiffs to serve defendants Jaklin Benji, Mathew Rashidi, Mike Rashidi, Precise Global Imaging, Inc., and Precise MRI Corporation (collectively, Defendants) one year ago, on August 11, 2025. In that time, not one motion has been heard. A demurrer was filed and then mooted by an amended complaint. A second demurrer was filed, and then the parties stipulated to put the hearing on that demurrer off until the end of October. The parties have not shown that pending demurrer presents a host of novel, time consuming motions. Similarly, the parties have not identified any other of the alleged numerous pretrial motions that will be necessary. The parties also assert the case will involve the management of a large number of witnesses or a substantial amount of documentary evidence. The parties assert this case involves 2,465 claims at 76 different locations which will give rise to the need to depose 100-150 witnesses. Although this may give rise to a large volume of documents and witnesses, that alone does not designate this case as complex. Moreover, there is no explanation
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		what will be needed to try this case. For example, is it the same issue over and over again on each insurance claim that can be streamlined or does every claim present a distinct issue? The parties have not shown this case involves management of a large number of separately represented parties. There are essentially three plaintiffs represented by a single law firm. Similarly, there are five defendants all represented by the same law firm. This factor would appear not to be present. The fourth factors—i.e., coordination with related actions pending in one or more courts in other counties, states, or countries, or in a federal court—is one on which the parties differ. Defendants have filed multiple notices of related cases claiming this case is related to the case pending in Los Angeles, but the Los Angeles Superior Court, as the one with the lower case number, is the one to make the related case determination (or whether to reach out and discuss issues) and that court has declined to deem the cases related. Moreover, Defendants insist this case will be coordinated with the Los Angeles case, but Defendants have failed to show any steps have been taken to make that occur in the one year that has elapsed since this case was unsealed. Finally, as to whether substantial postjudgment judicial supervision will be necessary, the parties again have made no specific showing. Counsel should appear at the hearing to provide any update regarding the status of the Los Angeles case, and much more specific information relating to the necessary factors for this case to be deemed complex.
15.	<i>Interinsurance Exchange of the Automobile Club vs. Smith</i> <i>2026-01556853</i>	Before the court is the motion filed on June 8, 2026 (and re-filed on June 16, 2026), by petitioner Interinsurance Exchange of The Automobile Club (Petitioner) to “Obtain Cellular Phone Records From Verizon Or Alternatively, To Enforce Deposition Subpoena.” As more fully set forth below, the motion is GRANTED. The Motion seeks an order compelling Verizon to release specific cell phone records to Petitioner for the cell phone of Respondent Charles Smith (Smith) pursuant to subpoena and a signed release of records. The motion appears to have been timely filed and duly served. Neither Smith nor Verizon has filed an opposition to the motion. In addition, Petitioner represents the subscriber for the cell phone number at issue is Felicia Burns, and